

15th City Council
18th Regular Session
Series of 2010

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod

PRESENT:

Vice Mayor	Sara Z. Duterte	Presiding Officer
Councilor	Nilo G. Abejlera	
Councilor	Victorio S. Advincula	
Councilor	Wilberto E. Al-ag	
Councilor	Dante L. Apostol Sr.	
Councilor	Leonardo R. Avila III	
Councilor	Conrado C. Bafuran	
Councilor	Samuel B. Bangoy	
Councilor	Karlo S. Bello	
Councilor	Louie John J. Bonguyan	
Councilor	Pilar C. Braga	
Councilor	Arnolfo Ricardo B. Cabling	
Councilor	Daniilo C. Dayanghirang	
Councilor	Edgar R. Ibuyan	
Councilor	Peter T. Laviña	
Councilor	Teresita C. Mata-Marañon	
Councilor	Bonifacio E. Militar	
Councilor	Tomas I. Monteverde IV	
Councilor	Myrna G.L. Dalodo-Ortiz	
Councilor	Susan Isabel C. Reta	
Councilor	Halila Y. Sudagar	
Councilor	Angela A. Librado-Trinidad	
Councilor	Rachel P. Zozobrado	

ON OFFICIAL BUSINESS:

Councilor	Ma. Belen S. Acosta
Councilor	Paolo Z. Duterte
Councilor	Diosdado Angelo A. Mahipus Sr.

ABSENT:

Councilor	Jose Louie P. Villafuerte	On Domestic Emergency Leave
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ORDINANCE NO. 0420-10
Series of 2010

AN ORDINANCE AMENDING ORDINANCE NO. 30, SERIES OF 1988, ENTITLED "AN ORDINANCE AMENDING AND REVISING ORDINANCE NO. 142, SERIES OF 1955, OTHERWISE KNOWN AS THE ANTI-NUISANCE ORDINANCE" TO BE KNOWN AS THE "REVISED ANTI-NUISANCE ORDINANCE OF DAVAO CITY, DEFINING NUISANCE, PROHIBITING THE SAME, PUNISHING VIOLATION THEREOF AND FOR OTHER PURPOSES"

Be it Ordained by the Sangguniang Panlungsod of Davao City in session assembled, that:

SECTION 1. Section 3 of Ordinance No. 30, Series of 1998^{am}, is hereby amended to read as follows:

That the allowable noise level in general areas are as follows:

Category of Daytime Area		Morning and Evening	Nighttime
AA	50dB	45dB	40dB
A	55dB	50dB	45dB
B	65 dB	60dB	55dB
C	70dB	65dB	60dB
D	75dB	70dB	65dB

SECTION 2. Section 4 of the said Ordinance is hereby amended to read as follows:

"That the classification of the General Areas are as follows:

Class AA – a section or contiguous area which requires quietness such as area within 100 meters from school sites, nursery schools, hospitals, special homes for the aged and other health care institutions and place of worship;

Class A – a section or contiguous area that is primarily used for residential purposes;

Class B – a section or contiguous area that is primarily a commercial area;

Class C – a section that is primarily reserved as a light industrial area;

Class D – a section that is primarily reserved as a heavy industrial areas;"

SECTION 3. Section 5 of the said Ordinance is hereby amended to read as follows:

"That the division of the 24-hour period shall be as follows:

Morning	5:00 a.m. to 9:00 a.m.
Day Time	9:00 a.m. to 6:00 p.m.
Evening	6:00 p.m. to 10:00 p.m.
Night Time	10:00 p.m. to 5:00 a.m.;

SECTION 4. Sections 3, 4 and 5 of the said Ordinance shall now be designated as Sections 6, 7 and 8, respectively;

SECTION 5 - EFFECTIVITY - This Ordinance shall take effect upon its approval.

ENACTED, May 18, 2010 by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:



ZULEIKA T. LOPEZ

Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

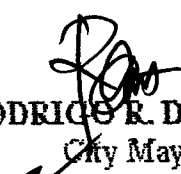
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ATTESTED:



SARA Z. DUTERTE
Vice Mayor
Presiding Officer
(v)

APPROVED: JUN 28 2010, 2010



RODRIGO R. DUTERTE
City Mayor

ATTESTED:



MARCELINO P. ESCALADA JR.
Acting City Administrator